PURCHASE AND SALE AGREEMENT

Windmill Village | Indianapolis, IN

Seller	Ellison Crest Realty
Buyer	Cascadia Rock Capital
Property	Windmill Village, 4358 Elm Road, Indianapolis, IN 40124
Purchase Price	$39,880,000
Effective Date	December 30, 2022

1. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Windmill Village, located at 4358 Elm Road, Indianapolis, IN 40124, consisting of 127,000 SF, together with all improvements, fixtures and appurtenances. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

2. Purchase Price. The purchase price for the Property shall be $39,880,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

3. Earnest Money Deposit. Within 42 business days after the Effective Date, Buyer shall deposit $798,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

4. Due Diligence Period. Buyer shall have 38 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

5. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

6. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

7. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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8. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

9. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Closing. Closing shall occur on or before February 13, 2023, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

11. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

12. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Windmill Village, located at 4358 Elm Road, Indianapolis, IN 40124, consisting of 127,000 SF, together with all improvements, fixtures and appurtenances. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

13. Purchase Price. The purchase price for the Property shall be $39,880,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

14. Earnest Money Deposit. Within 27 business days after the Effective Date, Buyer shall deposit $798,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

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15. Due Diligence Period. Buyer shall have 17 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

16. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

17. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

18. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

19. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

20. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

21. Closing. Closing shall occur on or before February 13, 2023, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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22. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

23. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Windmill Village, located at 4358 Elm Road, Indianapolis, IN 40124, consisting of 127,000 SF, together with all improvements, fixtures and appurtenances. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

24. Purchase Price. The purchase price for the Property shall be $39,880,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

25. Earnest Money Deposit. Within 24 business days after the Effective Date, Buyer shall deposit $798,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

26. Due Diligence Period. Buyer shall have 4 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

27. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

28. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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29. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

30. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

31. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Time is of the essence with respect to each and every provision of this instrument.

32. Closing. Closing shall occur on or before February 13, 2023, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

33. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

34. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Windmill Village, located at 4358 Elm Road, Indianapolis, IN 40124, consisting of 127,000 SF, together with all improvements, fixtures and appurtenances. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

35. Purchase Price. The purchase price for the Property shall be $39,880,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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36. Earnest Money Deposit. Within 32 business days after the Effective Date, Buyer shall deposit $798,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

37. Due Diligence Period. Buyer shall have 12 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

38. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

39. Representations and Warranties of Seller. Seller represents that the rent roll delivered to Buyer is true, correct and complete in all material respects and that there are no pending or threatened condemnation or litigation proceedings. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

40. Operation of the Property. Between the Effective Date and Closing, Seller shall operate the Property in the ordinary course and shall not enter into new leases or service contracts without Buyer's approval. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

41. Conditions to Closing. Buyer's obligation to close is conditioned upon delivery of tenant estoppel certificates from tenants representing at least 75% of leased area and issuance of the title policy. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

42. Prorations. Rents, real estate taxes, utilities and operating expenses shall be prorated as of 11:59 p.m. on the day preceding Closing based on the actual number of days in the period. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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43. Closing. Closing shall occur on or before February 13, 2023, through escrow with Heartland Title Insurance Co.. Possession shall be delivered to Buyer at Closing. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

44. Casualty and Condemnation. If the Property is materially damaged prior to Closing, Buyer may terminate this Agreement or proceed to close and receive an assignment of insurance proceeds. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

45. Purchase and Sale. Seller agrees to sell and Buyer agrees to purchase the Property known as Windmill Village, located at 4358 Elm Road, Indianapolis, IN 40124, consisting of 127,000 SF, together with all improvements, fixtures and appurtenances. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

46. Purchase Price. The purchase price for the Property shall be $39,880,000, payable at Closing by wire transfer of immediately available funds, subject to the prorations and adjustments set forth herein. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

47. Earnest Money Deposit. Within 28 business days after the Effective Date, Buyer shall deposit $798,000 with the Escrow Agent. The deposit shall become non-refundable upon expiration of the Due Diligence Period except as expressly provided. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

48. Due Diligence Period. Buyer shall have 36 days following the Effective Date to inspect the Property, review the Due Diligence Materials and terminate this Agreement in its sole discretion. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

49. Title and Survey. Seller shall convey good and marketable fee simple title to the Property by special warranty deed, subject only to the Permitted Exceptions. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of IN.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Ellison Crest Realty

By: Victor Kowalski Title: Manager Date: 12/30/2022

_____

Paragon Realty

By: Emily Nguyen Title: President Date: 12/30/2022

Exhibit A - Property

Windmill Village, 4358 Elm Road, Indianapolis, IN 40124. Parcel containing approximately 24.61 acres, together with all improvements thereon.

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